21070 INTELLECTUAL PROPERTY LAW FOR BUSINESS

Classe impartita in lingua inglese

Programs: INTENT (6 crediti - I sem. - OB | 6 cfu - GIUR-02/A)
Class: 27 (I sem.)
Department: Law

Course director: LAURENT MANDERIEUX

Classe 27

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Attenzione! Il programma di seguito riportato è da considerarsi valido SOLO per l'anno accademico 2026/2027.

MISSION

The Intellectual Property Law for Business Course aims at providing students with knowledge and legal tools to use and exploit innovation and technology as relevant assets for businesses in largely internationalized markets. In this sense, the course aims at helping students

proceeding further in the study of other courses of the Program studied at Bocconi University with a solid background in IP Techniques, something needed to deal with innovation-related economics and management issues.

COURSE CONTENT DETAILED - SCHEDULE

- INTENT cl. 27

21070 - INTELLECTUAL PROPERTY LAW FOR BUSINESS

CLASS 27

Course Director: Laurent Manderieux

Course Instructors: Laurent Manderieux, Ulrika Wennersten, Joe Sekhon

Date	Lesson n° and Program Summary	**Readings for attending students**
07/09/2026 18:15 – 19:45 (Manderieux)	**L. 1: Course introduction** *Lecture focus* -Introduction: o working methods o the strategic role of IP for bussiness	Chapter 1: The Concept of IP, p. 3-4 The World Intellectual Property Organization p. 4-8 Chapter 3: The promotion of Innovation, p. 168-171

	+ Research debate 1: purpose and method of IP Law	Chapter 5: Paris Convention p. 241-249
		The TRIPS Agreement p. 345-347 (until "*General Provisions, Basic Principles and Final Provisions"*)

I. Digital technologies, Internet and copyright protection, and new functions of IPRs

10/09/2026 14:45 – 16:15 (Wennersten)	**L. 2:** **The multifaceted nature of copyright** *Lecture focus* - What is intellectual property and why does it matter for business? - Basic copyright concepts: o what is protected; o who owns the right; o why businesses care about ownership and control; o the difference between protection, exploitation, and enforcement. -Introduction to the international copyright framework in simple terms.	Chapter 2: Copyright and Related Rights, p. 40-51 (until "*Piracy and Infringement*') and 56-67 (from "*Intellectual Property and Traditional Cultural Expressions*" until "*Trademarks*") Chapter 5: The Berne Convention, p. 262-267 (until "*Developing Countries and the Berne Convention*") The WIPO Copyright Treaty ("WCT"), p. 269-276 The Rome Convention p. 314-319 (until "*The Rome Convention and Developing Countries*")

11/09/2026 08.30 – 10:00 (Wennersten)	**L. 3:** **Copyright protection on the Internet: an opportunity or a threat for creativity?**	The WIPO Performances and Phonograms Treaty (WPPT) p. 325-331 Chapter 7: Computer Programs p. 435-442 Reprography p. 448-449
	Lecture focus: - The exclusive right of communication to the public under EU copyright law - Communication to the public in different digital environments. - User-generated content and the legal boundaries of sharing protected works - -Who is responsible online? ◦ platform users ◦ online platforms ◦ copyright owners -How copyright influences platform business models and content moderation -Platform liability under the DSM Directive (Article 17)	Audio and Video recordings, p. 449-450 Communication Technologies p. 450-457
	Research debate 2: **Does current copyright**	

	regulation promote innovation? What would be the alterative to a copyright system?	
15/09/2026 10:15 – 11:45 (Wennersten)	**L.4: Copyright enforcement and remedies in the digital age and Industrial Design** *Lecture focus:* - What is a copyright infringement? -What happens when copyright is infringed? - Why enforcement matters for business strategy. - Core remedies. - Practical overview of online enforcement problems. -Why businesses use design protection alongside copyright and trade marks -Industrial design protection as commercial asset	Chapter 2: Remedies, p. 52-56 Chapter 4: Enforcement of Copyright and Related Rights, p. 207-208 and p. 213-220 Copyright Infringement, p. 226 Remedies, p. 228-234 The Legal Protection of Industrial Design p. 112-118
15/09/2026 12:00 – 13:30	**L. 5: Artificial intelligence and copyright: business risks and opportunities** *Lecture focus:*	Chapter 2: Ownership of Copyright p. 49

(Wennersten)	-Generative AI as a business tool -Copyright protectability of AI-assisted and AI-generated works -Human authorship and the originality requirement -AI training, reproduction and copyright infringement -The Text and Data Mining (TDM) exceptions -Managing AI-related copyright risks through licensing, contracts and internal AI policies	
	+ Research debate 3: Can works created with generative AI be protected by copyright, and can the use of AI-generated content infringe copyright?	
16/09/2026 13:00 - 14:30 (Wennersten)	**L. 6:** **Industrial Design** **&** **Introduction to Licensing as a business tool** *Lecture focus:* -Why businesses use design	The Legal Protection of Industrial Design p. 112-118 Licensing p. 172-184 Copyright Licenses p. 191-195,

	protection alongside copyright and trade marks -Industrial design protection as commercial asset - Licensing as a core IP strategy - Copyright licences: o exclusive vs non-exclusive; o assignment vs licence; o scope, territory, duration, and royalties; o practical drafting issues.	
17/09/2026 14:45 - 16:15 (Wennersten)	**L.7: Copyright, design, sustainability, and new business models** *Lecture focus:* - Reuse, adaptation, and transformation as business practices **-** The intersection of copyright, design, branding, and sustainability **-** How new technologies and sustainable practices affect infringement analysis **-** Business tensions between	Chapter 2: Piracy and Infringement, p. 51-52

	exclusivity, resale, remixing, and circular economy models	
	Research debate 4: Can new technologies like the metaverse and sustainable practices such as upcycling lead to copyright or design infringement?	

II. Distinctive signs as a tool for creativity in Europe and in the world

24/09/2026 14.45 – 16.15 (Manderieux)	**L. 8: Trademarks as an innovation tool** *Lecture focus:* - purpose and evolution of TM **Guest Speaker: Avv. Marina Lanfranconi** **KPMG Legal & Indicam Board**	Chapter 2: Trademarks p. 67-92 (until "*Change of Ownership"*) Further materials will be used in class.
08/10/2026 14.45 – 16.15	**L. 9: Trademarks I** *Lecture focus:* - basic rules on trademarks o key principles of TM law o TM registration substantive requirements o TM use and enforcement - exercises on trademarks	Chapter 5: Trademark Law Treaty p. 297-300 The TRIPS Agreement p. 350-351 ("*Trademarks (Section 2)"*) Chapter 6: The Trademark Office p. 372-375 Further materials will be distributed / studied in class

	+ Research debate 5: the law and economics of trademarks: do trademarks work? Trademarks as an asset for innovative businesses: EUIPO at the heart of the international trademark system	
09/10/2026 14.45 – 16.15 (Manderieux)	**L. 10: Trademarks II** *Lecture focus:* - Protecting innovative products in Europe and in the world: the EU Trade Mark and the International Trademark (the Alicante and Madrid Systems): role and rules of registration systems **Guest Speaker: Avv. Agata Sobol Lexsential (30 min intro)** - Trademarks v. geographical indications, treaties and classifications	Chapter 2: Geographical Indications p. 120-130 Chapter 5: The Madrid Agreement p. 287-292 Treaties on Classification p. 308-313 (until "*The Locarno Agreement (…)*") Further materials will be distributed / studied in class

III. International systems for the protection of inventions in Europe and in the world

29/10/2026 14.45 – 16.15 (Manderieux)	**L. 11: Patents I** *Lecture focus:* - patents: existing laws, treaties and systems; their strengths and weaknesses and their legal and economic effects - key principles of TM law - patent registration substative	Chapter 2: Patents p. 17-34 (until "*Compulsory Licenses"*) Patent Law Treaty p. 301 -305 The TRIPS Agreement p. 352-354 ("*Patents (Section 5)"*)

	requirements	
	+ Research debate 6: IP Law: Economics vs. social perception	
30/10/2026 14.45 – 16.15 (Manderieux)	**L. 12: Patents II** *Lecture focus:* - introduction on registration systems - Patenting abroad: o the rules of PCT system	Article "*A brave new patent world – first to file becomes law*", Gene Quinn, from IPWatchdog, 16 March 2013 – (https://ipwatchdog.com/2013/03/16/a-brave-new-patent-world-first-to-file-becomes-law/id=37601/#:~:text=President%20Obama%20signs%20the%20AIA,Obama%20on%20September%2016%2C%202011)
	+ Practical exercises on patents	Chapter 5: Patent Cooperation Treaty p. 276-285 (until "*Budapest Treaty (…)*")
	Recent reforms in U.S. patent law and their international impact + the US Bayh Dole Act	Further materials will be distributed / studied in class
30/10/2026 16:30 - 18:00 (Manderieux)	**L. 13: Patents III** *Lecture focus:* - patenting abroad: o the European patent system; o introduction to the Eurasian system and the two African	Chapter 6: The Patent Office p. 369-372, Intergovernmental Cooperation p. 376-381 Chapter 7: Protection of Computer Programs under Patents p. 436. Further materials will be

	systems (ARIPO and OAPI); o patents in China; - the protection of computer implemented inventions: Europe vs. the world **Guest Speaker from the European Patent Office (30 min)** + Practical exercises on patents	distributed / studied in class
05/11/2026 14.45 -16.15 (Manderieux)	**L. 14: The circulation of Intellectual Property Rights (IPRs) I** *Lecture focus:* - introduction on technology transfer and IPRs as assets - licensing o key principles of licensing o voluntary licensing vs. compulsory licensing; + Research debate 7: what type of licensing would you choose for your business? + Research debate 8: What is the best patent protection strategy: national, regional or international? + Research debate 9: Patents	Chapter 3: Licensing and the Transfer of Technology p. 172-178 (until "*Negotiation of Licensing Agreements"*), 188-193 (from "*Types of Intellectual Property Licenses*"), Licensing and the Transfer of Technology p. 178-188 ("*Negotiation of Licensing Agreements*") Further materials will be distributed / studied in class.

	and data	
06/11/2026 14.45 -16.15	**L. 15: The circulation of Intellectual Property Rights (IPRs) II**	Chapter 4: Enforcement of Industrial Property Rights p. 207-213 (until "*Enforcement of Copyright (…)"*)
(Manderieux)	*Lecture focus:* - voluntary licensing: o licenses in the EU: the "*safe harbor*" rules;	Patent Infringement p. 225-226 (until "*Copyright infringement"*)
	+SEP patents and FRAND Agreements: Basic concepts, European case law, and SEP licence negotiation exercise (groupwork)*	Further materials will be distributed / studied in class

IV. The circulation of IP Rights: licensing and competition rules

12/11/2026 14.45 – 16.15	**L 16: Licensing in practice**	Chapter 2: Patents Compulsory Licensing p. 34-40
(Manderieux)	*Lecture focus:* - Practical exercise on licensing	Trademarks p. 92-96 (from "*Change of Ownership"*), 97-101 (from "*Franchising"* until "*Types of Franchise"*)
	+Antitrust, "*essential facilities*" and intellectual property: basic issues in Europe	Chapter 3: p. 193-195 ("*Government Control of Licensing Agreements*")
		Further materials will be distributed / studied in class
13/11/2026 14.45 – 16.15	**L. 17: International trade and IP**	Chapter 5: The Rome Convention p. 314-319 (until *"The Rome Convention and Developing Countries"*), The Agreement on Trade-Related

(Manderieux)	*Lecture focus:* - the free trade agreements: Multilateralism vs. bilateralism? - The Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPs): o the treaty's position within the sources of IP law o exam of most relevant provisions + Research debate 10: What relationship between IP and international trade?	Aspects of Intellectual Property Rights ("TRIPS") and WIPO-WTO Cooperation p. 345-357 (until *"Cooperation Between the World Intellectual Property Organization and the World Trade Organization"*)
19/11/2026 14.45 – 16.15	**L. 18:** *Lecture focus:*	Further materials will be provided or readable in class for simulation exercises
(Manderieux)	Forced licensing in technology transfer: practical cases. **DELOITTE GUEST SPEAKER (to be confirmed)**	
26/11/2026 14.45 – 16.15		
(Sekhon)		